

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR ENGROSSED
6 SENATE BILL NO. 80

By: Standridge, Sacchieri, and
Jett of the Senate

and

Staires, Menz, and **Sterling**
of the House

10 COMMITTEE SUBSTITUTE

11 An Act relating to the Oklahoma Turnpike Authority;
12 amending 69 O.S. 2021, Section 1705, as amended by
13 Section 572, Chapter 486, O.S.L. 2025 (69 O.S. Supp.
14 2025, Section 1705), which relates to the powers and
15 duties of the Oklahoma Turnpike Authority; removing
16 authorization for Authority for construction at
17 certain locations; altering location of certain
18 authorized construction; removing certain bond
19 issuance requirement; updating statutory language;
20 amending 69 O.S. 2021, Section 1717, which relates to
21 project to become part of state highway system;
22 modifying conditions for a turnpike to become part of
23 the state highway system; and providing an effective
24 date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 69 O.S. 2021, Section 1705, as
amended by Section 572, Chapter 486, O.S.L. 2025 (69 O.S. Supp.
2025, Section 1705), is amended to read as follows:

1 Section 1705. The Oklahoma Turnpike Authority is hereby
2 authorized and empowered:

3 (a) To adopt bylaws for the regulation of its affairs and
4 conduct of its business.

5 (b) To adopt an official seal and alter the same at pleasure.

6 (c) To maintain an office at such place or places within the
7 state as it may designate.

8 (d) To sue and be sued in contract, reverse condemnation,
9 equity, mandamus, and similar actions in its own name, plead and be
10 impleaded; provided, that any and all actions at law or in equity
11 against the Authority shall be brought in the county in which the
12 principal office of the Authority shall be located, or in the county
13 of the residence of the plaintiff, or the county where the cause of
14 action arose. All privileges granted to the Authority and duties
15 enjoined upon the Authority by the provisions of Sections 1701
16 through ~~1734~~ 1736 of this title may be enforced in a court of
17 competent jurisdiction in an action in mandamus.

18 (e) To construct, maintain, repair, and operate turnpike
19 projects and highways, with their access and connecting roads, at
20 such locations and on such routes as it shall determine to be
21 feasible and economically sound; provided, that until specifically
22 authorized by the Legislature, the Authority shall be authorized to
23 construct and operate toll turnpikes only at the following
24 locations:

1 (1) The Turner Turnpike between Oklahoma City and Tulsa.

2 (2) The Southwestern (H.E. Bailey) Turnpike between Oklahoma
3 City and Wichita Falls, Texas.

4 (3) The Northeastern (Will Rogers) Turnpike between Tulsa and
5 Joplin, Missouri.

6 (4) The Eastern (Indian Nation) Turnpike between Tulsa
7 Henryetta and Paris, Texas, including all or any part thereof
8 between McAlester and the Red River south of Hugo, Oklahoma.

9 (5) The Cimarron Turnpike between Tulsa and Interstate Highway
10 35 north of Perry, including a connection to Stillwater.

11 (6) The Muskogee Turnpike between Broken Arrow and Interstate
12 Highway 40 west of Webbers Falls.

13 ~~(7) All or any part of an extension of the Muskogee Turnpike,~~
14 ~~beginning at a point on Interstate Highway 40 near the present south~~
15 ~~terminus of the Muskogee Turnpike, and extending in a southeasterly~~
16 ~~direction on an alignment near Stigler, Poteau and Heavener to the~~
17 ~~vicinity of the Arkansas State Line to furnish access to Hot~~
18 ~~Springs, Texarkana, Shreveport and New Orleans.~~

19 ~~(8) A tollgate on the Turner Turnpike in the vicinity of~~
20 ~~Luther, Oklahoma, and in the vicinity of the intersection of State~~
21 ~~Highway 33 and Turner Turnpike in Creek County, Oklahoma, or in the~~
22 ~~vicinity of the intersection of State Highway 33 and Turner Turnpike~~
23 ~~or U.S. Highway 66 in Creek County, Oklahoma, from any monies~~
24 ~~available to the Authority.~~

1 ~~(9) Add on the Will Rogers Turnpike a northbound automatic~~
2 ~~tollgate onto State Highway 28 and a southbound on-ramp from State~~
3 ~~Highway 28.~~

4 ~~(10) A turnpike or any part or parts thereof beginning in the~~
5 ~~vicinity of Duncan extending east to the vicinity of the City of~~
6 ~~Davis, and extending in a northeasterly direction, by way of the~~
7 ~~vicinity of the City of Ada, to a connection in the vicinity of~~
8 ~~Henryetta or in the vicinity of the intersection of State Highway 48~~
9 ~~and Interstate 40; and a~~

10 (8) A turnpike or any part or parts thereof from the vicinity
11 of Snyder extending north to the vicinity of Woodward.

12 ~~(11) A turnpike or any part or parts thereof beginning at a~~
13 ~~point in the vicinity of Ponca City, or at a point on the Kansas-~~
14 ~~Oklahoma state boundary line east of the Arkansas River and west of~~
15 ~~the point where Oklahoma State Highway No. 18 intersects said state~~
16 ~~boundary line, and extending in a southeasterly direction to a~~
17 ~~connection with the Tulsa Urban Expressway System in the general~~
18 ~~area of the Port of Catoosa.~~

19 ~~(12) All or any part of an Oklahoma City toll expressway system~~
20 ~~connecting the residential, industrial and State Capitol Complex in~~
21 ~~the north part of Oklahoma City with the residential, industrial and~~
22 ~~Will Rogers World Airport Complex in the south and southwest parts~~
23 ~~of Oklahoma City.~~

1 ~~(13) A turnpike (The Industrial Parkway) or any part or parts~~
2 ~~thereof beginning at a point on the Oklahoma-Kansas state boundary~~
3 ~~line between the point where U.S. Highway 66 intersects the boundary~~
4 ~~line and the northeast corner of Oklahoma and ending by means of a~~
5 ~~connection or connections with Shreveport, Louisiana, and Houston,~~
6 ~~Texas, in southeastern Oklahoma and at no point to exceed thirty~~
7 ~~(30) miles west of the Missouri or Arkansas border.~~

8 ~~(14)~~

9 (9) A turnpike or any parts thereof beginning at a point on
10 Interstate 40 near the Arkansas state line southerly to include a
11 bridge crossing the Red River between Hugo, Oklahoma, and the
12 Oklahoma-Arkansas border.

13 (10) A turnpike or any part or parts thereof beginning in the
14 vicinity of Velma or County Line to a point intersecting with
15 Interstate 35 in the area south of Davis.

16 ~~(15) A turnpike or any part or parts thereof beginning in the~~
17 ~~vicinity of Watonga and extending south and/or east to the vicinity~~
18 ~~of north and/or west Oklahoma City.~~

19 ~~(16) A tollgate on the Will Rogers Turnpike near the~~
20 ~~intersection of State Highway 137 and the Will Rogers Turnpike,~~
21 ~~located south of Quapaw.~~

22 ~~(17) A tollgate on the Muskogee Turnpike in the vicinity of~~
23 ~~Porter, Oklahoma, a tollgate on the Will Rogers Turnpike in the~~
24 ~~vicinity of Adair, Oklahoma, a tollgate on the Turner Turnpike in~~

1 ~~the vicinity of Luther, Oklahoma, and a tollgate on the H.E. Bailey~~
2 ~~Turnpike at Elgin, Oklahoma, from any monies available to the~~
3 ~~Authority.~~

4 ~~(18) A tollgate on the Turner Turnpike in the vicinity of~~
5 ~~Wellston, Oklahoma, from any monies available to the Authority.~~

6 ~~(19) A tollgate on the Muskogee Turnpike in the vicinity of~~
7 ~~Brushy Mountain, Oklahoma, and in the vicinity of Elm Grove,~~
8 ~~Oklahoma, from any monies available to the Authority.~~

9 ~~(20)~~ (11) All or any part of an Oklahoma City Outer Loop
10 expressway system beginning in the vicinity of ~~I-35~~ Interstate 35
11 and the Turner Turnpike and extending west into Canadian County and
12 then south to ~~I-40~~ Interstate 40; and then south and east to ~~I-35~~
13 Interstate 35 in the vicinity of Moore and Norman; and then
14 extending east and north to ~~I-40~~ Interstate 40 east of Tinker Field;
15 and then extending north to the Turner Turnpike to complete the
16 Outer Loop.

17 ~~(21)~~ (12) All or any part of the Tulsa south bypass expressway
18 system beginning in the vicinity of the Turner Turnpike near Sapulpa
19 and extending south and east to U.S. Highway 75 in the vicinity of
20 96th Street to 121st Street; and then east across the Arkansas River
21 to a connection with the Mingo Valley Expressway; and then south
22 ~~and/or~~ or east to a point on the Tulsa-Wagoner ~~County Line~~ county
23 line near 131st Street south in the ~~city~~ City of Broken Arrow.

1 ~~(22)~~ (13) A new turnpike or any part thereof from near the west
2 gate of the Will Rogers Turnpike south to the west end of south
3 Tulsa Turnpike at the Tulsa-Wagoner ~~County Line~~ county line.

4 ~~(23)~~ (14) A new turnpike or any parts thereof from the vicinity
5 of the connection between ~~State~~ U.S. Highway 33 and U.S. Highway 69
6 easterly to the Arkansas ~~State Line~~ state line.

7 ~~(24)~~ ~~A four-lane extension of the Muskogee Turnpike from~~
8 ~~Interstate Highway 40 west of Webbers Falls to the Poteau vicinity.~~

9 ~~(25)~~ ~~A new turnpike or any part or parts thereof beginning at a~~
10 ~~point in the vicinity of northwest Tulsa, and extending in a~~
11 ~~northwesterly direction, by means of a connection or connections~~
12 ~~with the cities of Pawhuska and Newkirk, to a point intersecting in~~
13 ~~the vicinity of U.S. Highway No. 77 and the Kansas State Line.~~

14 ~~(26)~~ ~~A full access interchange on the Indian Nation Turnpike~~
15 ~~south of Interstate 40, in the vicinity of Henryetta, Oklahoma, and~~
16 ~~in the vicinity of the proposed theme park, museum or an industrial~~
17 ~~facility which qualifies for the Oklahoma Quality Jobs Program Act,~~
18 ~~from any monies available to the Authority.~~

19 ~~(27)~~ (15) A new turnpike beginning at a point directly west of
20 the Arkansas line and four-laning Highway 70 from that point to the
21 farthest western reach of Highway 70 creating a southern route
22 through Oklahoma.

23 ~~(28)~~ (16) A new turnpike and bridge or any parts thereof from a
24 point in the vicinity of the ~~city~~ City of Mustang southerly across

1 the South Canadian River to the H.E. Bailey Turnpike in the vicinity
2 of the ~~city~~ City of Tuttle; and then easterly across the South
3 Canadian River to a point in the vicinity of the ~~city~~ City of
4 Norman.

5 ~~(29)~~ (17) A new turnpike or any parts thereof beginning at a
6 point in the vicinity of the city of Altus and extending in a
7 northwesterly direction to a point in the vicinity of the city of
8 Sayre.

9 ~~(30)~~ (18) A new turnpike or any parts thereof beginning at a
10 point in the vicinity of the city of Enid and extending in a
11 westerly direction to a point in the vicinity of the city of
12 Woodward.

13 ~~(31) An on- and off-ramp or any parts thereof at Fletcher,~~
14 ~~Oklahoma, in the vicinity of the Interstate 44 and State Highway 277~~
15 ~~intersection. Any existing on- or off-ramp or any parts thereof in~~
16 ~~the vicinity of Fletcher, Oklahoma, shall not be removed and shall~~
17 ~~be maintained pursuant to Section 1701 et seq. of this title.~~

18 ~~(32)~~ (19) A new bridge crossing the Arkansas River ~~between~~
19 ~~South Delaware Avenue and Memorial Drive in Tulsa County. This~~
20 ~~project shall commence upon a determination by the Oklahoma~~
21 ~~Transportation Authority that such bridge shall be self-sufficient~~
22 ~~at some point over a thirty-year time period from the toll charges~~
23 ~~associated with the bridge project~~ in the vicinity of Bixby,
24 Oklahoma.

1 ~~(33) An exit ramp or any parts thereof from the eastbound lane~~
2 ~~of the Turner Turnpike at 96th Street in Tulsa.~~

3 ~~(34) An on and off ramp or any parts thereof on the Cimarron~~
4 ~~Turnpike in the vicinity of the northside of the Glencoe, Oklahoma,~~
5 ~~municipal limits.~~

6 ~~(35)~~ (20) A new turnpike or any parts thereof beginning at
7 Interstate 44 at or near its intersection with 49th West Avenue,
8 past ~~State~~ U.S. Highway 64/412, turning northeasterly, crossing 41st
9 West Avenue, and continuing eastward to the L.L. Tisdale Expressway
10 in Tulsa, Oklahoma.

11 All access roads, interchanges, or lead roads connecting such
12 turnpikes with existing highways must be built by funds furnished by
13 the Authority.

14 The minimum and maximum wages for the construction of the roads,
15 highways and projects provided for in Sections 1701 through ~~1734~~
16 1736 of this title shall be in accordance with the schedules of
17 wages used or adopted by the Commission in construction of state
18 highways.

19 The Authority is hereby authorized to enter into contracts or
20 agreements with agencies and instrumentalities of other states or
21 the national government for construction, maintenance, and operation
22 of interstate turnpikes or highways.

1 ~~The Authority is hereby required to construct and install~~
2 ~~automatic tollgates on the Will Rogers Turnpike at State Highway No.~~
3 ~~28 near Adair.~~

4 (f) To issue turnpike revenue bonds of the Authority, payable
5 solely from revenues, including the revenues accruing to the trust
6 fund created by Sections 1701 through ~~1734~~ 1736 of this title, for
7 the purpose of paying all or any part of the cost of any one or more
8 turnpike projects. ~~Provided that any bonds issued for the~~
9 ~~construction of the proposed turnpike referred to in subparagraphs~~
10 ~~(10), (20), (21) and (22) of paragraph (c) of this section shall be~~
11 ~~issued as one issue for all four of the proposed turnpikes and shall~~
12 ~~be financed, constructed and operated under one bond indenture.~~

13 (g) To fix and revise from time to time tolls for the use of
14 any turnpike projects.

15 Any common carrier having authority at the time of opening any
16 turnpike project to operate upon a highway approximately paralleling
17 the turnpike project shall be granted without further showing
18 authority to operate over the turnpike project to all municipalities
19 which such carrier is serving at the time the turnpike project is
20 opened to traffic. But nothing herein shall be construed as
21 granting any new operation rights to any common carriers.

22 (h) To acquire, hold, and dispose of real and personal property
23 in the exercise of its powers and the performance of its duties.

1 (i) To acquire in the name of the Authority by purchase or
2 otherwise on such terms and conditions and in such manner as it may
3 deem proper, or by exercise of the right of condemnation in manner
4 hereinafter provided, such public or private lands, including public
5 parks, playgrounds, or reservations, or parts thereof or rights
6 therein, rights-of-way, property, rights, easements, and interests,
7 as it may deem necessary for carrying out the provisions of Sections
8 1701 through ~~1734~~ 1736 of this title; provided, that all public or
9 private property damaged in carrying out the powers granted by
10 Sections 1701 through ~~1734~~ 1736 of this title shall be restored or
11 repaired and placed in its original condition as nearly as
12 practicable.

13 (j) To designate, except as is provided for herein, the
14 location, and establish, limit, and control such points of ingress
15 to and egress from each turnpike project as may be necessary or
16 desirable in the judgment of the Authority to insure the proper
17 operation and maintenance of such project, and to prohibit entrance
18 to such project from any point or points not so designated.

19 (k) To make and enter into all contracts and agreements
20 necessary or incidental to the performance of its duties and the
21 execution of its powers, and to employ consulting engineers,
22 attorneys, accountants, construction and financial experts,
23 superintendents, managers, and such other employees and agents as
24 may be necessary in its judgment, and to fix their compensation;

1 provided, that all such expenses shall be payable solely from the
2 proceeds of turnpike revenue bonds issued under the provisions of
3 Sections 1701 through ~~1734~~ 1736 of this title or from revenues;
4 provided, further, no attorney employed by the Authority, nor any
5 member of any law firm of which the attorney may be connected, shall
6 ever be paid any fee or compensation for any special or
7 extraordinary services.

8 (l) To receive and accept from any federal agency grants for or
9 in aid of the construction of any turnpike project, provided, the
10 acceptance of such grants will not reduce the amount of federal aid
11 for the construction, repair, or maintenance of farm-to-market roads
12 and other highways and bridges in this state; and to receive and
13 accept aid or contributions from any source of either money,
14 property, labor, or other things of value, to be held, used, and
15 applied only for the purposes for which such grants and
16 contributions may be made.

17 (m) To adopt such rules, and to do any and all things necessary
18 to comply with rules, regulations, or requirements of the Bureau of
19 Public Roads, Multistate Economic Development Regional Commission,
20 as defined in Sections 1151 through 1153, inclusive, of Title 74 of
21 the Oklahoma Statutes, Ozarka Region Commission or any other federal
22 agency administering any law enacted by the Congress of the United
23 States to aid or encourage the construction of highways.

1 (n) To do all things necessary or convenient to carry out the
2 powers expressly granted in Sections 1701 through ~~1734~~ 1736 of this
3 title. The design standards for all paving shall comply with the
4 design standards of the American Association of State Highway and
5 Transportation Officials as modified by the ~~Oklahoma~~ Department of
6 Transportation. All contracts for construction work on turnpike
7 projects shall be let to the lowest responsible bidder, or bidders,
8 after notice by publication in a newspaper published in the county
9 where the work is to be done in two consecutive weekly issues of the
10 newspaper. In all cases where more than eight (8) miles of
11 construction is let at the same time and is not an advertisement for
12 a surface-treatment-only project, such advertisement shall provide
13 for bids on sections of the turnpike not to exceed eight (8) miles.
14 If the project advertised is a surface-treatment-only project of
15 more than twenty (20) miles of road, the advertisement shall provide
16 for bids on sections of the road no longer than twenty (20) miles,
17 as well as bids on the project as a whole. Subject to the following
18 restrictions and limitations, the Authority shall, when contracting
19 for construction work, divide such work into paving projects, bridge
20 projects, including underpasses and overpasses, and earthmoving or
21 miscellaneous projects, according to the type of work to be done.
22 Each project shall be let under a separate contract or contracts and
23 no contract or project shall include more than one of such types of
24 construction work. Each contract for construction work shall

1 contain a provision that ninety percent (90%) of all labor employed
2 on the project shall be residents of Oklahoma. However, contracts
3 for bridges may include earthwork and structures for the approaches
4 thereto.

5 (o) It shall be unlawful for any member, officer or employee of
6 the Authority to transact with the Authority, either directly or
7 indirectly, any business for profit of such member, officer, or
8 employee; and any person, firm, or corporation knowingly
9 participating therein shall be equally liable for violation of this
10 provision.

11 The term "business for profit" shall include, but not be limited
12 to, the acceptance or payment of any fee, commission, gift, or
13 consideration to such member, officer, or employee.

14 Violation of this provision shall constitute a Class D1 felony
15 offense punishable by incarceration as provided for in subsections B
16 through F of Section 20N of Title 21 of the Oklahoma Statutes, or a
17 fine of not less than Five Hundred Dollars (\$500.00) and not more
18 than Five Thousand Dollars (\$5,000.00), or both such imprisonment
19 and fine.

20 (p) In the event of a national emergency, the Authority,
21 subject to any vested rights or claims, may enter into contracts
22 with the federal government or any authorized agency thereof to
23 allow the federal government or agency thereof to use such turnpikes
24 partly or exclusively during the existence of such emergency,

1 provided, that the federal government agrees in such contract to
2 pay, during the term of such contract, an amount sufficient, when
3 added to any tolls collected, to meet all operating and maintenance
4 expenses, interest payments, and the minimum sinking fund and
5 reserve requirements of the trust agreement for the turnpike covered
6 by the contract.

7 (q) All meetings of the Authority shall be open public
8 meetings, and all records shall be public records, except when
9 considering personnel or litigation.

10 SECTION 2. AMENDATORY 69 O.S. 2021, Section 1717, is
11 amended to read as follows:

12 Section 1717. When all bonds issued under the provisions of
13 this article and the interest thereon shall have been paid for a
14 period of ten (10) years or a sufficient amount for the payment of
15 all such bonds and the interest thereon to the maturity thereof
16 shall have been set aside in trust for the benefit of the
17 bondholders, such projects, if then in good condition and repair to
18 the satisfaction of the Commission having required no maintenance
19 expense for a period of ten (10) years and no known maintenance
20 needs forthcoming, shall become part of the state highway system and
21 shall thereafter be maintained by the Commission free of tolls.
22 Provided, that when all bonds for any turnpike project and the
23 interest thereon shall have been paid or such provision for payment
24 made, prior to payment of the bonds and interest on any other

1 project or projects, such project shall continue to be operated as a
2 toll facility at toll rates not less than the lowest rate being
3 charged on any project, until all bonds issued by the Authority and
4 the interest thereon shall have been paid or such provisions for
5 payment made. The revenues of such paid-out projects shall be used
6 and applied by the Authority in paying the obligations or depositing
7 in the sinking fund of such other turnpike projects in the following
8 order: (a) To any project or projects in default on interest: (b)
9 to any project or projects in default on principal; (c) to any
10 project or projects having insufficient reserves or sinking fund
11 under its trust agreement. If all such other projects have
12 sufficient reserves then the revenues from such paid-out project
13 shall be prorated between such other projects on the basis of the
14 outstanding bonds of each project. If two or more projects fall
15 within any of the above categories, then the revenues shall be
16 prorated between them on the basis of the outstanding bonds of each
17 project.

18 SECTION 3. This act shall become effective November 1, 2026.
19

20 COMMITTEE REPORT BY: COMMITTEE ON COMMERCE AND ECONOMIC DEVELOPMENT
21 OVERSIGHT, dated 04/20/2026 - DO PASS, As Amended and Coauthored.
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